



SPONSOR: Rep. Lynn & Rep. Ortega & Sen. Hoffner & Sen. Pinkney
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HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 58

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO DETENTION AND ARRESTS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Subchapter I, Chapter 19, Title 11 of the Delaware Code by making deletions as shown by
2 strike through and insertions as shown by underline as follows:

3 § 1903A. Civil immigration actions prohibited.

4 A law-enforcement officer may not do any of the following:

5 (1) Stop, question, arrest, search, or detain any individual based on actual or suspected citizenship or
6 immigration status, or actual or suspected violations of federal civil immigration law.

7 (2) Inquire about an individual's immigration status, citizenship, place of birth, or eligibility for a social
8 security number.

9 (3) Make an arrest, detain, or prolong the detention of an individual based on civil immigration warrants or
10 immigration detainees.

SYNOPSIS

Under this Act a law-enforcement officer of this State is not allowed to do any of the following:

(1) Stop, question, arrest, search, or detain any individual based on actual or suspected citizenship or immigration status, or actual or suspected violations of federal civil immigration law.

(2) Inquire about an individual's immigration status, citizenship, place of birth, or eligibility for a social security number.

(3) Make an arrest, detain, or prolong the detention of an individual based on civil immigration warrants or immigration detainees.